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Social Networks

4.1 Conceptualisation and a Brief History of Social Networks

Social network sites (SNSs) can be defined as:

web-based services that allow individuals to (1) construct a public or semi-public profile within a bounded system, (2) articulate a list of other users with whom they share a connection, and (3) view and traverse their list of connections and those made by others within the system.¹

boyd and Ellison use the term ‘social network sites’ as opposed to the term ‘social networking sites’ that is often considered its synonym. They argue that these terms are different in that ‘networking’ emphasises relationship initiation, often between strangers, which is not the primary purpose of social network sites, ‘nor is it what differentiates them from other forms of computer-mediated communication (CMC)’.² Instead, social networks are primarily used to maintain and continue existing offline relationships between their users.³ This varies across SNSs and is more accurate for Facebook than for Instagram, where users follow and interact with a more significant number of ‘strangers’ who choose to leave their profiles open.

Grimmelmann, in his comprehensive early study on Facebook, accepts this definition and adds the feature of ‘explicitness’, noting that social networks are ‘the *explicit representation* of connections among users’.⁴ These

¹ d boyd and NB Ellison ‘Social network sites: Definition, history, and scholarship’ (2007) 13(1) *Journal of Computer-Mediated Communication* 210, 1.

² Ibid. 2.

³ JTL Grimmelmann, ‘Saving Facebook’ (2009) 94 *Iowa Law Review* 1137, 1154; d boyd, ‘Why youth (heart) social network sites: The role of networked publics in teenage social life’ in D Buckingham (ed.), *Youth, Identity, and Digital Media* (MIT Press 2009) 119–29, 126 <<http://www.mitpressjournals.org/doi/pdf/10.1162/dmal.9780262524834.119>> last accessed 1 August 2021.

⁴ Grimmelmann (n 3) 1143 (original emphasis).

connections and interactions, according to Grimmelmann, have three most important aspects: identity (they enable users to create and build their identities, so they are ‘as much performative as informative’⁵), relationship and community.⁶ Regarding the relationship aspect, research finds social networks have significant social impact, including their use to maintain social ties, revive ‘dormant’ relationships and avoid social isolation.⁷ Social networks carry many negative connotations and consequences, such as addiction, bullying, harassment and trolling. A great range of credible research has emerged over the years to evidence these phenomena. However, this aspect of SNSs is outside the scope of this book.

Another critical aspect of SNSs is that they facilitate the posting and sharing of user-generated content (UGC), discussed in Chapter 1. The individual terms in the UGC phrase take the following meanings: user – a computer or Internet user and amateurs; generated – created by these users, including a degree of creativity, something not merely uploaded or copied; content – digital content, the content available online.⁸ White, for example, when defining UGC, notes that ‘Blogs, wikis, social-networking sites and video-sharing sites (for example, YouTube) are among the most popular UGC technologies.’⁹ From a technological point of view, Shirky calls the code behind social networks ‘social software’, that is, ‘software that supports group communications’.¹⁰

Notwithstanding the standard features, social networks are very different in terms of their purpose and the content posted, shared or created therein. Some are primarily used for social interactions with friends, families and others, facilitating the exchange of various kinds of content, such as text,

⁵ Ibid. 1153.

⁶ Ibid.

⁷ See Pew Research Center, ‘Social networking fact sheet’ <<http://www.pewinternet.org/fact-sheets/social-networking-fact-sheet/>> last accessed 1 August 2021. The emancipatory aspect of social networks has been a subject of fierce critique as well. See for example J Hasanović and E Adilović, ‘The double life of virtual: Emancipation as immobilization in an isolated age’ in ŞŞ Erçetin, ŞN Açıkalın and E Vajzović (eds), *Chaos, Complexity and Leadership* (Springer Proceedings in Complexity 2020).

⁸ S Hetcher, ‘User-generated content and the future of copyright: Part two – agreements between users and mega-sites’ (2008) 24 *Santa Clara Computer & High Technology Law Journal* 829, 870–3.

⁹ E White, ‘The Berne Convention’s flexible fixation requirement: A problematic provision for user-generated content’ (2012–13) 13 *Chicago Journal of International Law* 685, 691.

¹⁰ C Shirky, ‘Social software and the politics of groups’ *Networks, Economy, & Culture Mailing List* (9 March 2009) <http://www.shirky.com/writings/group_politics.html> last accessed 1 August 2021. Other kinds of social software include blogs, wikis and media-sharing sites, like Flickr and YouTube.

photos, personal data, videos, games, and so on (Facebook, Twitter). Others focus on the exchange of photos and videos (YouTube, Instagram, Flickr, TikTok), some focus on professional interactions (LinkedIn), and some are music-oriented (Spotify, LastFM, MySpace). All this content can have a very diverse legal nature, which depends, *inter alia*, on the different relationships and options available within the intermediaries that facilitate these social interactions.

Essentially, SNSs are online platforms that enable and facilitate communication, sharing and other types of interaction between their users. Communications and sharing are the key features looked at in this book through the lenses of different legal concepts (IP, data protection, property, contracts). These interactions trigger the analysis of whether traditional legal concepts apply to SNSs.

The popularity of social networks in the Western world nowadays is tremendous.¹¹ The UK Office for National Statistics finds that in 2020, 70 per cent of all adults participated in social networking, which makes it the fifth most popular online activity after sending emails, finding information, Internet banking and using instant messaging services.¹² Similarly, in the US, Pew Research Center finds that 72 per cent of online adults in the US use social networks.¹³ This chapter focuses on the most widely used and representative social networks in the Western world, Facebook and Twitter. These SNSs have the most extensive user base, and their social and cultural importance for users is invaluable. Alongside Instagram and TikTok, they are still the primary platforms used to share UGC worldwide.¹⁴

Facebook is an open social network, and anyone with an email address and claiming to be aged thirteen or older can join.¹⁵ Facebook offers different

¹¹ This is not to say that the popularity is not similar in the other parts of the world. See for example *Statista*, 'Social media in Asia Pacific – statistics & facts' (8 June 2021) <<https://www.statista.com/topics/6606/social-media-in-asia-pacific/#:~:text=The%20favored%20social%20media%20app,prominent%20mark%20on%20the%20industry>> last accessed 1 August 2021.

¹² See Office for National Statistics, 'Internet access – households and individuals 2020' (7 August 2021) <<https://www.ons.gov.uk/peoplepopulationandcommunity/household-characteristics/homeinternetandsocialmediausage/datasets/internetaccesshouseholdsandindividualsreferencetables>> last accessed 1 August 2021, 6.

¹³ See Pew Research Center, 'Social media fact sheet' (7 April 2021) <<https://www.pewresearch.org/internet/fact-sheet/social-media/>> last accessed 1 August 2021.

¹⁴ Statista, 'Most popular social networks worldwide as of April 2021, ranked by number of active users' <<https://www.statista.com/statistics/272014/global-social-networks-ranked-by-number-of-users/>> last accessed 1 August 2021.

¹⁵ C Abram, 'Welcome to Facebook, everyone' *Facebook Blog* (26 September 2006) <http://blog.facebook.com/blog.php?blog_id=company&m=9&y=2006> last accessed 1 August

tools for users to search and add potential friends.¹⁶ A user's profile page has a 'timeline' where other users can post messages (so-called status updates), photos, videos and other content (provided that the privacy settings set by the user allow this). The timeline includes a cover photo, profile picture, timeline stream and different information a user decides to share (personal information, interests, hobbies and various other applications such as games or events). A private chat and messaging system, 'Messenger', acts as a stand-alone application, now integrated in Instagram. Another important feature is 'Photos', a photo-sharing functionality with a tagging system: users click on a face in a photo (posted by them or someone else) and enter the person's name. If that person is a Facebook user, the photo will be linked to their timeline or photostream (if allowed by privacy settings). These activities generate a stream of event notifications, and since September 2006, that stream is visible to users. A user's homepage displays a 'Feed' (formerly 'News Feed'), a list of the most recent notifications from their friends. Facebook's 'Platform' feature enables developers to create 'Applications' that plug into the Facebook site. The Platform includes an interface for providers to issue instructions to Facebook and gathers information from it,¹⁷ along with a custom mark-up language that enables notifications and an interface shown to users with the Facebook look and feel.¹⁸ Facebook has constantly been growing and innovating, introducing additional features for groups, adverts, shopping and games.

Twitter, conversely, has been conceived as a 'conversational microblog', where users post messages that appear in the streams of all the people who are subscribed to them (who 'follow' these users). Users who subscribe to and receive one's messages are one's 'followers' or people who are following them. In turn, the people whom a user is following are called their friends. The maximum length of the message, or 'tweet', has grown from the initial 140 to 280 characters only, which puts Twitter in the microblogging category. In order to address someone on Twitter, users use the functionality of @reply, including a user's username, to indicate that the tweet is specifically intended for them (e.g. a tweet including @EdinaRl would be directed to my Twitter account

2021; Facebook, 'Terms of use' <<http://www.facebook.com/terms.php>> last accessed 1 August 2021.

¹⁶ Facebook, 'Find people you know on Facebook' <<https://www.facebook.com/help/146466588759199> (search for users)> last accessed 1 August 2021; F Ratiu, 'People you may know' *Facebook Blog* (2 May 2008) <<http://blog.facebook.com/blog.php?post=15610312130>> last accessed 1 August 2021.

¹⁷ Facebook Wiki, 'API, Facebook Developer Wiki' <http://fbdevwiki.com/wiki/Facebook_Developer_Wiki> last accessed 1 August 2021.

¹⁸ Facebook Wiki, 'FBML, Facebook Developer Wiki' <<http://fbdevwiki.com/wiki/Category:FBML>> last accessed 1 August 2021.

and shown on its main page). The tweet is still public, but now the addressee is known, and the flow of the conversation is clearer. Another important feature on Twitter is a hashtag, identified by the # sign. The hashtag is a descriptive keyword, and by using or searching for a hashtag, users can join or follow the conversation on particular topics (e.g. #digitalassets would contribute to the conversation on digital assets). Hashtags are, however, not Twitter's invention but that of a similar service called Jaiku.¹⁹ The action of retweeting means using someone else's tweet and rebroadcasting it with attribution to that user so that the retweeter's own followers can see it. Finally, users can send private messages with the same character limit and attach photos and videos to their tweets.

Creating content – primarily images, videos, notes, status updates and tweets – is one of the essential functions of social networks. Therefore, this chapter will look at the content of social network (SN) accounts in terms of private messages, images, videos, status updates or tweets, personal data and information. The focus will not be on some other features, for instance Facebook groups, events or games. Games could arguably follow the line or arguments established in Chapter 5, especially as the use of virtual reality features in social networks increases. The focus will be on the private, individual content shared and created through an SN account, as the whole book looks at the relevant post-mortem issues from a user perspective. User accounts will be explored in relation to terms of service and how they restrict or enable access to the content. The focus is not in the interface and current application features of these SNSs because of the tremendous pace at which these features change, on the one hand, and the importance of the phenomenon rather than technicalities, on the other.

The analysis in this chapter will include copyright, property, contracts and privacy issues. Like games and VWs and emails in later chapters, SN accounts represent a complex set of legal relations, between users and the platform or intermediary, between users themselves, and even between users and third parties (advertisers, government, media).

In contrast with Chapter 5, where assets in games and VWs are looked at from a perspective of three layers, the case study of SNSs requires a perspective similar to the one in Chapter 6, discussing emails. There are two critical layers here. The first one is the developers' code, which entitles the SNS providers to own the underlying system and account created to be able to use the system. The second layer predominantly includes copyrightable material.

¹⁹ V Barash and S Golder, 'Twitter: Conversation, entertainment and information, all in one network!' in D Hansen, B Shneiderman and M Smith, *Analyzing Social Media Networks with NodeXL: Insights from a Connected World* (Morgan Kaufmann 2010) 147.

All the six main issues around post-mortem transmission of other assets analysed in this book apply to social networks (i.e. legal definition; access; conflicts with criminal legislation; jurisdiction; conflicts between various interests; and conflicts between succession laws and digital solutions). These issues are, understandably, manifested differently. The chapter will consider these differences, applying the same conceptual approach and focusing on the issues of a legal nature, access to the content, and different conflicts arising in the transmission of SNS content.

4.2 Illustration Through Case Law

Unfortunately, there has not been comprehensive, relevant litigation and precedent in the UK or US that would answer some of the questions posed in these and similar cases, more specifically the legal nature of this content and whether it transmits on death. There has been a growing number of relevant court cases worldwide, but most of them have raised more questions than they have answered so far. We will explore some of these and illustrate critical issues by looking at the media reports and cases that have unfortunately not reached the courts.

In one of the first cases reported by the media, Karen Williams, the mother of Loren Williams, who was killed in a motorbike accident in 2005 at the age of twenty-two, requested access to her son's account.²⁰ Karen asked Facebook not to delete her son's account after she obtained his password through a friend of her son. Soon after she began logging in, the password was changed or deactivated by Facebook, and she could not access the account any more.²¹ Karen started negotiating with Facebook through her lawyer, and they agreed that she would be able to access Loren's account for ten months. In 2007, Karen also obtained a court order from Multnomah County Circuit Court, Oregon, giving effect to the agreement.²²

Another case that has only been known from its media coverage again illustrates some of the issues and the *ad hoc* response Facebook has to the issues surrounding accounts of deceased users. Facebook has launched a 'Look Back' feature that creates a video generated by popular moments on a

²⁰ L. Gambino, 'In death, Facebook photos could fade away forever' *Associated Press* (1 March 2013) <<http://news.yahoo.com/death-facebook-photos-could-fade-away-forever-085129756--finance.html>> last accessed 1 August 2021.

²¹ Huff Post Tech, 'Karen Williams' Facebook saga raises question of whether users' profiles are part of "digital estates" *Huffington Post* (15 March 2012) <http://www.huffingtonpost.com/2012/03/15/karen-williams-face_book_n_1349128.html> last accessed 1 August 2021.

²² *Ibid.*

person's profile. John Berlin, the father of Jesse, who died in 2012 at the age of twenty-two, posted a YouTube clip asking Mark Zuckerberg, Facebook's founder, to create a Look Back video for his son. Berlin did not have access to his son's account and thus could not create one himself. After widespread media support for Berlin, Facebook agreed to create one on his behalf using content Jesse had posted publicly, again implying its policy of protecting users' privacy, even upon death. Facebook also noted that 'This experience reinforced to us that there's more Facebook can do to help people celebrate and commemorate the lives of people they have lost' and said that it will share more about this in the future.²³ Facebook has come up with some changes in this regard, and we will look at these later in the chapter. There have been, reportedly, other cases where deceased users' videos have been provided to their families upon request, and the request for a deceased's Look Back video has now been incorporated in Facebook's terms.²⁴

The case of Sahar Daftary illustrates the issue of international jurisdiction in these cases.²⁵ Although it is not within the scope of this book to discuss the jurisdiction issue in depth, it is important to note here that Facebook refused to grant access to the account to Sahar's family without a court order, and the family initiated a request to subpoena the records in the Californian courts. The court found that the US Stored Communications Act²⁶ prevents a US service provider from disclosing stored communications in civil proceedings.²⁷ The court has extended the effect of the US statute to a foreign citizen, stating that there was no duty to provide stored communications for the foreign proceedings. The Court held, 'It would be odd, to put it mildly, to grant discovery related to foreign proceedings but not those taking place in the United States.'²⁸ The court also noted that Facebook could disclose the records to the family voluntarily, as this is in accordance with the Act. It has not been reported if Facebook has done so, but bearing in mind its terms of use, it is unlikely that it did. This case thus serves as an example where precedence has been given to the deceased's privacy over the claimed property right

²³ D Lee, 'Facebook reviews family memorials after dad's plea' *BBC* (6 February 2014) <<http://www.bbc.co.uk/news/technology-26066688>> last accessed 1 August 2021.

²⁴ K Wagner, 'Facebook will make "Look Back" videos for deceased users' *Mashable* (21 February 2014) <<http://mashable.com/2014/02/21/facebook-look-back-video-deceased/>> last accessed 1 August 2021.

²⁵ *In re Request for Order Requiring Facebook, Inc to Produce Documents and Things*, C 12-80171 LHK (PSG) (ND Cal 20 September 2012).

²⁶ 18 USC § 2701.

²⁷ See *In re Request for Order Requiring Facebook, Inc to Produce Documents and Things* (n 25), citing *Theofel v Farley-Jones*, 359 F.3d 1066, 1074 (9th Cir 2004) 2.

²⁸ *Ibid.*

of the family and heirs. This is contrary to the German case where a dead girl's parent fought Facebook over access to her account. As noted in the previous chapter, succession claims prevailed over the privacy defence that Facebook used.²⁹

There has been exciting but scarce case law in the US regarding Twitter, addressing proprietary or privacy interests in tweets concerning criminal investigations and the Stored Communications Act.³⁰ In *New York v Harris*,³¹ Twitter sought to quash the subpoena issued by the New York County District Attorney's Office in January 2012. The subpoena required Twitter to provide user information (email addresses etc.), and tweets tweeted from the account @destructuremal allegedly used by Malcolm Harris. Harris was charged with disorderly conduct after participating in the Occupy Wall Street march on the Brooklyn Bridge. After getting the District Attorney's order, Twitter informed Harris that his account had been subpoenaed and, subsequently, Harris filed a motion to quash the subpoena. Twitter decided that it would not comply with the subpoena until the court ruled on this motion. The court order upheld the subpoena in April 2012. The court held that the defendant had no proprietary interest in the user information on his Twitter account, and he lacked standing to quash the subpoena.³² The court also stated that by agreeing to Twitter's terms of service agreement, the user 'was granting a license for Twitter to use, display and distribute the defendant's Tweets to anyone and for any purpose it may have'.³³

Following this decision, Twitter moved to quash the April 2012 court order and had not complied with the order by then. At the same time, on 17 May 2012, Twitter revised its terms of service agreement to add 'You retain your rights to any Content you submit, post or display on or through the Services.' It could be argued that Twitter changed its agreement between the April and June 2012 court orders in response to the April order.³⁴ However, in the June 2012 order, the court granted the motion to quash in part and denied it in part. It ordered Twitter to disclose all non-content and content

²⁹ Kammergericht, Urteil vom 31. Mai 2017, Aktenzeichen 21 U 9/16 <<https://www.berlin.de/gerichte/presse/pressemitteilungen-der-ordentlichen-gerichtsbarkeit/2017/pressemitteilung.596076.php>> last accessed 30 January 2022; appealed BGH, 12 July 2018, Docket No III ZR 183/17.

³⁰ See analysis in J Lamm, 'Defending your ownership and privacy in Twitter (and other online accounts)' *Digital Passing Blog* (25 July 2012) <<http://www.digitalpassing.com/2012/07/25/defending-ownership-privacy-twitter-online-accounts/>> last accessed 1 August 2021.

³¹ *People v Harris*, 36 Misc 3d 613 (NY Crim Ct 2012).

³² Ibid.

³³ Ibid.

³⁴ Ibid.

information older than 180 days, but content information less than 180 days old may only be disclosed under a search warrant.³⁵ It is interesting to note that, similarly to Facebook in the Daftary case and Yahoo! in the Ellsworth case, Twitter decided to defend the user's privacy and refuse to disclose the information until it had exhausted the legal challenges. However, even if not a subject matter of this case, the court found neither proprietary interests nor reasonable expectations of privacy in tweets. The analysis in this chapter will follow a similar line of argument, with a difference in considering copyright as a tool.

These cases and real-world examples illustrate only a limited number of issues identified in the section above (property, jurisdiction, privacy). This chapter will refer back to these examples and look at other issues not articulated in these cases (copyright, technology).

4.3 Legal Nature of the Content of Social Network Accounts

The main concepts to consider relevant to the legal nature of SNS account content and following the approach adopted in the book are property, copyright, contracts and privacy. This chapter will consider two alternative paradigms for the nature of this content: 1) SNS content is protected by copyright as literary or artistic works; and 2) the content is property (which takes us to the debate about whether information can be property; see Chapter 6).

Prima facie, this content predominantly includes literary and artistic works created by their authors, SNS users. Therefore, copyright appears to be one of the most obvious answers when determining the legal nature of SNSs. The following section will thus discuss copyright in SNS content in relation to transmission on death. Subsequently, the analysis will include property issues in a type of SNS content not susceptible to copyright protection.

(a) *Copyright in SNSs and Post-Mortem Transmission*

Social networks contain vast amounts of potentially or actually copyrighted materials. These include, for instance, photos and videos uploaded on Facebook and Twitter; tweets; Facebook status updates; and notes on Facebook in the forms of short stories, comments and poems.

The question of copyright in the content posted on SNSs has been relatively straightforward for many academics.³⁶ In Mazzone's opinion, 'poems,

³⁵ *People v Harris*, 2012 NY Slip Op 22175 [36 Misc 3d 868].

³⁶ 'In the US Copyright protection subsists . . . in original works of authorship fixed in any tangible medium of expression, now known or later developed, from which they can be perceived, reproduced, or otherwise communicated, either directly or with the aid of a machine or device.' See US Copyright Code 17 USC § 102(a) (2006). Digital works are eligible for

essays, photographs, videos, commentary, and even status updates are all potentially eligible for copyright protection'.³⁷ He also rightly observes that 'users do not depend upon the social networking site to obtain intellectual property rights',³⁸ Similarly, Darrow and Ferrera and Tarney all assert even more firmly that videos and pictures on social networks are copyrightable and consequently transmissible on death.³⁹

Nevertheless, one should not assume that all content will automatically qualify for copyright protection. This depends on the fulfilment of legal requirements. In most countries, these are publication, originality and fixation. One issue that could arise concerning copyright and social networks is whether the fixation in an electronic form on a remote computer or server would satisfy the requirement of fixation. The fixation requirement is discussed in more detail in Chapter 6 and my earlier work,⁴⁰ but it is clear that electronic fixation does meet the legal requirements of US and UK copyright law.⁴¹ White rightly asserts that UGC, such as tweets, posts on Facebook and blogs, will often meet these requirements. She notes that this content can be perceived and reproduced from a medium, namely a computer or servers. She also argues that they also are available for more than transitory duration. Tweets, for instance, 'update constantly, [but] do not automatically delete, nor do they overwrite each other when a new Tweet is posted. Tweets that are not on the immediate screen are archived and retrievable.'⁴² In addition, many websites store tweets, including the US Library of Congress.⁴³

copyright protection. See *ibid.* § 101 ('A work is "fixed" in a tangible medium of expression when its embodiment in a copy or phonorecord, by or under the authority of the author, is sufficiently permanent or stable to permit it to be perceived, reproduced, or otherwise communicated for a period of more than transitory duration').

³⁷ J Mazzone, 'Facebook's afterlife' (2012) 90 *North Carolina Law Review* 1643, 1651, citing § 102(a) (setting out the classes of work eligible for copyright protection).

³⁸ US Copyright Code 17 USC § 201 (2006) ('Copyright in a work protected under this title vests initially in the author or authors of the work').

³⁹ See J Darrow and G Ferrera, 'Who owns a decedent's e-mails: Inheritable probate or property of the network?' (2006) 10 *New York University Journal of Legislation and Public Policy* 281, 282–3, 287–9; US Copyright Code 17 USC § 102(a); T Tarney, 'A call for legislation to permit the transfer of digital assets at death' (2012) 40 *Capital University Law Review* 773, 783.

⁴⁰ E Harbinja, 'Social media and death' in L Gillies and D Mangan (eds), *The Legal Challenges of Social Media* (Edward Elgar 2017).

⁴¹ White (n 9) 697.

⁴² *Ibid.*

⁴³ R Adams, 'All your Twitter belongs to the Library of Congress' *Guardian* (14 April 2010) <<http://www.theguardian.com/world/richard-adams-blog/2010/apr/14/twitter-library-of-congress>> last accessed 1 August 2021.

The same could be argued for Facebook postings and blogs; they are updated and moved from a Feed, but they are also easily retrievable from a user's timeline.⁴⁴

The second copyright requirement is originality, and the same analysis from Chapter 6 and my earlier work applies.⁴⁵ If tweets, Facebook posts, updates, and so on contain single words or short phrases or titles, they would most likely not meet the originality requirement in US law. The situation is less evident in UK and EU law. However, most of the posts on Facebook and Twitter are longer than that and most probably satisfy this requirement, provided that a user has created them.

Regarding photographs, another familiar type of Facebook and Twitter content, a similar originality threshold is required. A photograph would be considered original in the US if it includes a small degree of composure and positioning.⁴⁶ Under UK copyright law, photographs are protected as artistic works under section 4 of the Copyright, Designs and Patents Act (CDPA) 1988. The UK requirement for originality has been similar to the US one (the labour and skill or 'sweat of the brow' test) but differs from the Court of Justice of the European Union's 'author's own intellectual creation' test, which requires a higher level of creativity.⁴⁷ Concerning photographs, in particular, it could be argued that the lower threshold of originality remains (including e.g. composition, positioning the object, choice of the angle of shot, lighting and focus, being at the right place at the right time).⁴⁸ Therefore, it could be argued that many (but not all) of the photos uploaded on Facebook and taken by a particular user could be protected by copyright. Conversely, much content would include the cases where users copy someone else's works, as in quotes (a widespread type of content on SNSs, where users express their moods and opinions quoting different authors), links to different content on other websites (news portals, blog posts, quotation pages, etc.), music (usually links to YouTube, Spotify, TikTok, etc.), articles (scholarly or news

⁴⁴ White (n 9) 698.

⁴⁵ Harbinja (n 40).

⁴⁶ The main cases are *Burrow-Giles Lithographic Co v Sarony*, 111 US 53, 59 (1884); *Mannion v Coors Brewing Co*, 377 F.Supp.2d 444, 455 (SDNY 2005), interpreting US Copyright Code 17 USC § 101.

⁴⁷ *Infopaq International A/S v Danske Dagblades Forening* (C-5/08) [2012] Bus LR 102 (16 July 2009) 33–7.

⁴⁸ See *Antiquesportfolio.com Plc v Rodney Fitch & Co Ltd* [2001] ECDR 5, 29–39; the unified test of *Infopaq* and *University of London Press* has been adopted by the Court in *Temple Island Collections Ltd v New English Teas Ltd* [2012] EWPC 1, where the judge held, 'Ultimately however the composition of the image can be the product of the skill and labour (or intellectual creation) of a photographer and it seems to me that skill and labour/intellectual creation directed to that end can give rise to copyright.'

articles) and photos taken by others. This category of content (user-uploaded or user-copied content) is not in the scope of this chapter, as the focus is on the content created by users and not the external content copyrighted by someone else. Users would not have any rights in this content and could, potentially, be liable for infringing copyright belonging to someone else. For this reason, this content is not the relevant one in relation to transmission on death.

Some SN content could resemble joint work or works of joint authorship in copyright law.⁴⁹ Users create and post content; other users comment on it, share it further, tag it, and so on. It is argued here that this analogy is not appropriate as the concept of joint work requires a high degree of integrity so that the contributions of individual authors are ‘inseparable or interdependent parts of a unitary whole’⁵⁰ or ‘not distinct’.⁵¹ The contributions are easily distinguishable and separable on a social network, as they are all tagged by an author’s name and can be edited, deleted or deactivated at any time.⁵²

The emphasis here is on the unpublished works of authorship and materials generated and posted on Facebook or Twitter only. This case is very different from emails as, on Twitter, most of the content is public and definitely published, and therefore protected as regular literary works, provided it meets the other requirements discussed above. In the case of Facebook, it is less clear, since publishing to a limited number of people is not making the content available to the public and so would not qualify in the cases where privacy settings are set to ‘friends only’ and only a limited number of users can access the content.⁵³

If the content is deemed unpublished, the same findings as in emails and my earlier research apply (PMP used as an argument against the default publication of personal data).⁵⁴ These works would potentially transmit on death, according to CDPA 1988, s 93 but it is argued that the provision would need to be changed or technology solutions need to be recognised as an ‘entitlement’ for the purpose of CDPA 1988, s 93.⁵⁵

⁴⁹ See US Copyright Code 17 USC § 101; UK Copyright, Designs and Patents Act 1988, c 48, s 10.

⁵⁰ US Copyright Code 17 USC § 101.

⁵¹ UK Copyright, Designs and Patents Act 1988, c 48, s 10.

⁵² Hetcher (n 8) 888.

⁵³ See the US case *Getaped.com, Inc v Cangemi*, 188 F.Supp.2d 398, 62 USPQ.2d (BNA) 1030 (SDNY 2002), where publication on the website, available to all, constituted publication for the purpose of US Copyright Code 17 USC § 101. This interpretation would arguably comply with the UK Copyright, Designs and Patents Act 1988, c 48, s 175.

⁵⁴ Harbinja (n 40).

⁵⁵ Ibid.

However, if the works are considered published, they are protected by copyright, and the next of kin should be able to inherit and benefit from them for seventy years post-mortem of the author. Content published elsewhere and accessible to the personal representative, executor or next of kin is not problematic. The estate will benefit from this content, and the usual rules for the succession of copyright apply.

Furthermore, social network authors of literary or artistic works would be entitled to moral rights, in addition to the copyright as an economic right.⁵⁶ In the UK, unless waived, therefore, users would have moral rights for seventy or twenty years post-mortem, depending on the type of right. In principle, moral rights in the UK transmit on death, but there are further relevant issues in relation to Facebook in particular. Whereas Facebook, for instance, does not require the waiving of moral rights in its terms of service, the access of a user's heirs to this content is limited. Since we do focus on unpublished work in this chapter (as published works can be accessed elsewhere), the problem with passing them on is the one identified in the paragraph above, concerning copyright, that is, access and contracts.

In summary, the most significant issue when considering the copyright and transmission of SN content is access and relevant contractual terms. In this regard, Mazzone draws an analogy with letters and the division between physical and intellectual property, arguing that even if users have copyright in social network content, the physical property would belong to the operator of the social network and 'the heir would have no right to obtain a copy of the materials'.⁵⁷ Later in this chapter, we will address these issues in more detail.

(b) Property in SNS Content

Some commentators firmly believe that social network accounts and content are essentially the property of the user. For them, a social network account 'is, like any online account, intangible property'.⁵⁸ This argument simplifies the different features of SN content and relationships between users and SN sites, as discussed later in this chapter. It also favours the American approach to intangible property, explored in Chapter 6, and fails to account for IP as a distinct legal concept. In addition, to rebut this argument, we could resort to Benkler's description of peer production, applicable to UGC in social networks, defined as a mode of 'information production that is not based on exclusive proprietary claims, not aimed toward sales in a market for either motivation or information, and not organized around property and contract

⁵⁶ Ibid.

⁵⁷ Mazzone (n 37) 1644.

⁵⁸ Ibid. 1650.

claims to form firms or market exchanges'.⁵⁹ In Grimmelmann's view, 'that's a fair description of Facebook culture: users voluntarily sharing information with each other for diverse reasons, both personal and social', rejecting the IP protection of their posts or trading in their social capital and information.⁶⁰ However, he asserts that the information commons is not desirable in the case of private information, as Facebook, with its features of sharing, large user base, and so on, is 'a privacy nightmare'.⁶¹ This chapter will note the information commons feature of Facebook and Twitter, take into account Grimmelmann's fears, and provide a different account of the legal nature of SN account content.

This chapter will use the analysis of property in information and personal data set out in Chapter 6. This analysis is chiefly relevant for that chapter, and therefore it is set out therein, but for the reader's benefit, we will summarise the main findings here. As in emails, in SN accounts, information would include non-copyrightable material such as short phrases, single words, jokes in status updates on Facebook or tweets that will not meet the requirements for copyright protection. Additionally, personal data represents a significant amount of SN content. In the case of Facebook, for instance, there is personal data in the 'About' section (name, place of birth, address, education, age, sex, relationship status, religious and political beliefs, pictures, etc.), but also in the user's albums, notes and status updates. A vast amount of this data belongs to the category of sensitive data (religious and political beliefs, sexual orientation, etc.).⁶² On Twitter, personal data is less prominent, but users still share some of it (in their general profile data, names, location, interests, etc.).

Regarding information and personal data, findings from Chapter 6 are applicable here. The non-copyrightable content of SNS, that is, information and personal data, is not (doctrinal argument) and should not be (normative argument) considered property. Instead, other safeguards established for information and personal data should be utilised to protect this content (breach of confidence, trade secrets, data protection).⁶³ This, tentatively, means that the non-proprietary character of SNS content to a considerable extent precludes its post-mortem transmission. The argument against the default

⁵⁹ Y Benkler, 'Siren songs and Amish children: Autonomy, information, and law' (2001) 76 *New York University Law Review* 23.

⁶⁰ Grimmelmann (n 3) 1188.

⁶¹ *Ibid.*

⁶² Article 8 of Directive 95/46/EC of the European Parliament and of the Council of 24 October 1995 on the protection of individuals with regard to the processing of personal data and on the free movement of such data OJ L 281, 23/11/1995 P. 0031–0050 (the Data Protection Directive); Data Protection Act 1998, c 29, s 2.

⁶³ Harbinja (n 40).

transmission of SNS content on death is further supported by the issues in transmitting copyright and the phenomenon of post-mortem privacy (PMP). Consequently, considering the issues with property and copyright in SNS content, the more relevant concept concerning the legal nature of this SN content is PMP, discussed further in this chapter.

4.4 Allocation of Ownership in Social Network Sites

We have established so far that most SN content is copyright and therefore potentially transmissible. This section will analyse ownership, property and copyright allocation in users' SN account content as established by service provider contracts (Facebook and Twitter). After discussing whether this content is property or work protected by copyright, this section will answer the question of who gets the copyright, if applicable, according to the contracts users conclude before starting to use their SN accounts.

Facebook's terms of use and privacy policy are known as the 'Statement of Rights and Responsibilities' and the 'Data Use Policy'.⁶⁴ In addition, the labyrinth of terms governing users' behaviour on Facebook is also found in other specific terms, policy documents, guidelines and forms.⁶⁵ These terms are often revised, and proposed changes are posted to the Facebook Site Governance Page a minimum of seven days before the change is effective.⁶⁶ Apart from for German users (where German law applies), the 'laws of the State of California will govern' the contract in terms of jurisdiction.⁶⁷ However, all disputes arising from the contract will be resolved 'exclusively in a state or federal court located in the US District Court for the Northern District of California or a state court located in San Mateo County'.⁶⁸

Facebook is clearly referring to the ownership of UGC when it states:

You own the intellectual property rights (things such as copyright or trademarks) in any such content that you create and share on Facebook and the other Facebook Company Products you use. Nothing in these Terms takes away the rights you have to your own content.⁶⁹

This term seems permissive compared with some other terms analysed in the following chapters, for emails in particular, as it recognises users' ownership

⁶⁴ Facebook, 'Terms: Statement of rights and responsibilities' <<https://www.facebook.com/legal/terms>> last accessed 1 August 2021.

⁶⁵ Ibid. s 5.

⁶⁶ Ibid. s 14. Users must 'like' the page in order to receive a notification on their timeline.

⁶⁷ Ibid. s 4.

⁶⁸ Ibid. s 3.1.

⁶⁹ Ibid.

and control of the content, but only for IP in the content created and shared by the user. However, looking at the extensive licence that users give Facebook for using their content, this control does not appear to be as strong as initially stated.⁷⁰ Furthermore, the somewhat incomprehensible term for an average user is related to the deletion of the content.⁷¹ It follows from this provision that the user cannot be sure whether the content has actually been removed and what the ‘reasonable amount of time’ for which this content can persist really means. Also, the use Facebook makes of this particular content is unclear. Furthermore, while the user seemingly retains control and can remove the content at any time, this is not the case with the account. The account can be transferred only with Facebook’s written permission, and only the user himself is entitled to access the account.⁷²

Therefore, whereas Facebook notes that the user owns the content, Facebook owns the account, and we can identify the same legal implications as in email accounts. This diminishes users’ control in what seems a relatively comprehensive way at first glance. However, it is also understandable, as the users use proprietary software to post and share their content. More control would arguably mean that users could download and transfer their content from one platform to another, which would be a property feature, as discussed earlier in this book. Also, the licence is imposed, and users cannot object to Facebook using their content. There are no negotiations in this regard, and users again lack control over their content.

Twitter also emphasises that users retain the right to ‘any Content you submit, post or display on or through the Services. What’s yours is yours – you own your Content.’⁷³ Twitter requires granting a broad licence to UGC, similar to that which Facebook requires.⁷⁴ Therefore, the analysis is similar to the above. The difference is privacy settings and how users share content on Twitter, which is public by default.⁷⁵ The underlying software is Twitter’s ownership, and the user gets a non-assignable and non-exclusive licence to use it.⁷⁶ However, even if Twitter is ready to recognise property or copyright interests in tweets and content posted on its platform, the courts are less likely to make a similar decision. However, the matter is still very unclear, as the US cases on

⁷⁰ Ibid.

⁷¹ Ibid.

⁷² ‘[N]ot share your password, give access to your Facebook account to others or transfer your account to anyone else (without our permission).’ See *ibid*.

⁷³ Twitter, ‘Terms of service’ <<https://twitter.com/tos>> last accessed 1 August 2021.

⁷⁴ Ibid.

⁷⁵ Ibid. ‘This license authorizes us to make your Content available to the rest of the world and to let others do the same.’

⁷⁶ Ibid.

these issues primarily have pertained to subpoenas and employer–employee relationships. Even there, the courts have failed to provide clear guidance. There are no relevant UK cases at the time of writing.

(a) Intermediary Contracts and Transmission of SNS Content on Death

The essential issue relating to transmission on death is the non-transferable nature of SN accounts. Facebook's terms state that the agreement 'does not confer any third party beneficiary rights'.⁷⁷ Facebook accounts are non-transferable, including any 'Page' or 'application' users administer, without Facebook's written permission.⁷⁸ There is a clear prohibition of impersonation (using another user's account pretending you are that user), as password sharing is prohibited, and users are also banned from letting anyone else access their account.⁷⁹ Twitter also has a strict impersonation policy, a breach of which results in the permanent suspension of an account.⁸⁰ There are no clear Twitter rules on whether the account is transferable, but one can infer from the impersonation policy that this is not allowed. Having in mind property incidents identified in Chapter 2, where transferability is essential, it is clear that individuals cannot own accounts. However, the question of owning content is a separate one and will be looked at in more detail.

Facebook

Regarding deceased users, no provision expressly terminates the contract between Facebook and a deceased user. For a very long time, Facebook's terms, the 'Statement of Rights and Responsibilities' and 'Data Use Policy', contained only one provision relating to a deceased's account. This obscure provision was hidden in the 'some other things you need to know' section of the 'Data Use Policy'⁸¹ and referred to the Facebook 'memorialization' process and the account closure under specific conditions.⁸² The use of the term 'may' implied a vague promise by Facebook, without any criteria specified, to

⁷⁷ Facebook, 'Terms: Statement of rights and responsibilities' (n 64) s 5.6.

⁷⁸ Ibid. s 3.1.

⁷⁹ Ibid. s 3.1.

⁸⁰ Twitter, 'Impersonation policy' <<https://help.twitter.com/en/rules-and-policies/twitter-impersonation-policy>> last accessed 1 August 2021. For a more comprehensive survey of cloud service providers' terms regarding their deceased users, see JD Michels, D Kamarinou and C Millard, 'Beyond the clouds, part 2: What happens to the files you store in the clouds when you die?' Queen Mary School of Law Legal Studies Research Paper No 316/2019 (13 May 2019) <<https://ssrn.com/abstract=3387398>> last accessed 1 August 2021.

⁸¹ Facebook, 'Data use policy, some other things to know' <<https://m.facebook.com/policy/?page=other>> last accessed 1 August 2021 (on file with the author).

⁸² Ibid.

memorialise or close an account.⁸³ The insertion of this option in Facebook's terms resulted from a personal loss of a Facebook employee.⁸⁴ This once more confirmed the usual practice of dealing with digital assets on death: *ad hoc* solutions, provoked by media coverage (as in Look Back videos, for instance), personal losses of employees (memorialisation), political interests (US state laws) or court cases (Twitter and Harris case). Facebook's terms of service are now much clearer and clearly refer to memorialisation and Legacy Contact options explored later in the chapter.⁸⁵

In addition to this provision within the actual agreement, all other details on Facebook's deceased policy are contained in various sections in Facebook's help centre and the options provided in several requests and contact forms. Bearing in mind their place and nature, Edwards and Harbinja question whether some of these forms and policies are 'merely statements of good practice' rather than binding contractual terms.⁸⁶ Therefore, it was suggested that the requests and help forms, not referred to in the general terms of service, are not a part of the contract between Facebook and its users, as they lacked some significant incorporation of terms requirements.⁸⁷ In this case, it would be incorporation by reference, and Facebook had not taken appropriate steps to bring these to users' attention. This has changed with the inclusion of the above term in the main terms, so the incorporation of terms is arguably present. Still, there is a problem with user awareness of the terms and the fact that help pages are not linked in the main terms of service.

Furthermore, like the general terms of service, these help centre pages and forms are often changed without notice to users, and it is difficult, if impossible, to keep track of the changes. McCallig argues that looking at Facebook's policies on deceased users, 'it seems clear that it is Facebook policy to memorialize the accounts of all deceased persons'.⁸⁸ However, technically,

⁸³ See D McCallig, 'Facebook after death: An evolving policy in a social network' (2014) 22(2) *International Journal of Law and Information Technology* 107, 114.

⁸⁴ HK Chan, 'Memories of friends departed endure on Facebook' *Facebook* (26 October 2009) <<https://www.facebook.com/notes/facebook/memories-of-friends-departed-endure-on-facebook/163091042130>> last accessed 1 August 2021.

⁸⁵ Facebook, 'Terms: Statement of rights and responsibilities' (n 64) s 5.5.

⁸⁶ L Edwards and E Harbinja, "'What happens to my Facebook profile when I die?': Legal issues around transmission of digital assets on death' in C Maciel and V C Pereira (eds), *Digital Legacy and Interaction: Post-Mortem Issues* (Springer 2013) 115–44.

⁸⁷ For example the requirement that these are brought to a user's attention before or at the time of the formation of contract, that is, when the user signs up to use Facebook. See *Olley v Marlborough Court Ltd* [1949] 1 KB 532; *Parker v South East Railway Company* (1877) 2 CPD 416.

⁸⁸ McCallig (n 83) 9.

Facebook does not know if someone has died unless it is notified.⁸⁹ It may have technical means to infer that from a user's inactivity, for instance, or their friends' posts in remembrance, but the approach of not taking steps unless 'formally' notified is better and provides more certainty.

Additionally, Facebook has no account inactivity policy, meaning that profiles might remain active for very long, if not permanently, and it will not delete inactive accounts. Therefore, the only way for the accounts to be memorialised or deactivated is after a user or non-user has reported the death to Facebook. Initially, the request could have been submitted by 'others' in addition to the user's family and friends. It was unclear who exactly could submit a request as 'other' – friends of friends, non-users, anyone else – so in June 2013, Facebook removed 'other' from the relationship with the deceased options on the memorialisation request form.⁹⁰ The current memorialisation policy again allows friends to submit the request, and arguably, others, too, but advises the person making the request to contact 'the person's family before requesting memorialisation'.⁹¹

The effects of memorialisation are that it prevents anyone from logging into the account, even those with valid login information and password.⁹² While alive, the decedent's content remains visible to those with whom it was shared (privacy settings remain 'as is').⁹³ Only the Legacy Contact that the deceased has chosen can manage the account, and if the user has requested deletion before death, this option will not be available.⁹⁴ In allowing privacy settings to remain post-mortem, Facebook claims that it wishes to respect the deceased's privacy. Depending on the privacy settings, confirmed friends may still post to the decedent's timeline. Accounts (timelines) that are memorialised no longer appear in the 'people you may know' suggestions or other

⁸⁹ JC Martin, 'Have you ever wondered what happens to your Facebook account after you have passed away?' *Silicon Valley Estate Planning Journal* (27 February 2015) <<http://johnmartinlaw.com/ever-wondered-happens-facebook-account-pass-away/>> last accessed 1 August 2021.

⁹⁰ Facebook, 'Memorialization request' <<https://www.facebook.com/help/contact/305593649477238>> last accessed 1 August 2021; Harbinja (n 40).

⁹¹ Facebook, 'Memorialization request' (n 90).

⁹² For a history of memorialisation, see McCallig (n 83) 11–12.

⁹³ Initially, it was visible only to the user's friends, but this changed in February 2014. See L Fields, 'Facebook changes access to profiles of deceased' *ABC News* (22 February 2014) <<http://abcnews.go.com/Technology/facebook-access-profiles-deceased/story?id=22632425>> last accessed 1 August 2021; C Price and A DiSclafani, 'Remembering our loved ones' *Facebook Newsroom* (21 February 2014) <<http://newsroom.fb.com/news/2014/02/remembering-our-loved-ones/>> last accessed 1 August 2021.

⁹⁴ Facebook, 'Terms: Statement of rights and responsibilities' (n 64).

suggestions and notifications.⁹⁵ Facebook also removes 'sensitive information such as contact information and status updates' to protect the deceased person's privacy.⁹⁶ In addition, memorialisation also prevents the tagging of the deceased in future Facebook posts, photographs or any other content.⁹⁷ Unfriending (removing someone from one's friends list) a deceased person's memorialised account is 'permanent and there is no way for a renewed friend request to be approved'.⁹⁸ Seemingly, a friend cannot be added to a memorialised account or profile, which might be an issue for parents of deceased children who may not have added their parents as friends while alive.⁹⁹ As McCallig notes, however, it was not clear whether Facebook would consider or grant a 'special request' to be added as a friend if made, for example, by a bereaved parent (as it met the request of Mr Berlin and the access to his son's Look Back video).¹⁰⁰ It seems like the current provision has been updated to disallow any request but the removal of the deceased's account or memorialisation.¹⁰¹

Concerning deactivation and removal of a deceased's account, the procedure has been complex and vague for a long time, before its latest revisions in the last couple of years. Facebook provided this option,¹⁰² but with very general statements and vague criteria, calling this a 'special request'. The option was available only to 'verified immediate family members' or an executor, and the relationship to the deceased needed to be verified. Again, Facebook only promised to 'process' these requests, without giving a firm promise of fulfilling special requests. This has recently been clarified, and the process is

⁹⁵ Facebook, 'What happens when a deceased person's account is memorialized?' <<https://www.facebook.com/help/103897939701143/>> last accessed 1 August 2021.

⁹⁶ M Kelly, 'Memories of friends departed endure on Facebook' *Facebook Blog* (26 October 2009) <<https://www.facebook.com/blog/blog.php?post=163091042130>> last accessed 1 August 2021.

⁹⁷ S Buck, 'How 1 billion people are coping with death and Facebook' *Mashable* (13 February 2013) <<http://mashable.com/2013/02/13/facebook-after-death/>> last accessed 1 August 2021.

⁹⁸ Death and Digital Legacy, 'Nebraska is latest state to address digital legacy' (20 February 2012) <<http://www.deathanddigitallegacy.com/2012/02/20/nebraska-is-latest-state-to-address-digital-legacy/>> last accessed 1 August 2021.

⁹⁹ Facebook, 'Special request for deceased person's account' <<https://www.facebook.com/help/contact/228813257197480>> last accessed 1 August 2021.

¹⁰⁰ Ibid.

¹⁰¹ Facebook, 'Special request for a medically incapacitated or deceased person's account' <<https://www.facebook.com/help/contact/228813257197480>> last accessed 1 August 2021.

¹⁰² Facebook, 'How do I ask a question about a deceased person's account on Facebook?' <<https://www.facebook.com/help/265593773453448>> last accessed 1 August 2021.

available to an immediate family member or executor of the account holder. Facebook requires the death certificate to process this request fast, or other documents if this is not possible (proof of authority: power of attorney, birth certificate, last will and testament, estate letter; proof that a person has passed away: obituary or memorial card).¹⁰³

Researchers have argued that the procedure for removal of a deceased user's profile is incongruous with Facebook's purpose and features (primarily keeping in touch with one's friends). Kasket, for instance, questions the 'right' of parents (often not users' friends on Facebook) to request permanent removal when this digital bond with friends there and profiles are primarily co-constructed (through different interactions on Facebook, such as tagging, sharing or re-posting).¹⁰⁴ Although looking at a small sample size, Pennington finds that all her college-student research participants had never unfriended a deceased user, although the reasons for not doing so varied.¹⁰⁵ Research finds that most Facebook users did not have their parents or children on their friends list, but 93 per cent of them do have other relatives on their Facebook friends list.¹⁰⁶ Also, most users are connected to their offline friends, and only a small percentage has befriended individuals they have never met offline.¹⁰⁷ Deactivation, therefore, even more than memorialisation, poses a question of reconciling the interests of a deceased user's family and friends. Is it in a user's interest to allow family members who are not on their friends lists in these co-constructed profiles to request deletion of such a profile and loss of the valuable materials for other users without a user expressing their wish in this direction? We will return to this question again later in this chapter and Chapter 7.

Following the case of Karen Williams, Facebook does not permit a family member access to the account, as opposed to copies of the contents of the account, which is permitted in some instances. McCallig opines that this change is 'most likely linked to fears that doing so might breach the Stored Communication Act, a United States federal law which prohibits the

¹⁰³ Facebook, 'How do I request the removal of a deceased family member's Facebook account?' <<https://www.facebook.com/help/1518259735093203/?helpref=related>> last accessed 1 August 2021.

¹⁰⁴ E Kasket, 'Access to the digital self in life and death: Privacy in the context of posthumously persistent Facebook profiles' (2013) 10:1 *SCRIPTed* 7.

¹⁰⁵ N Pennington, 'You don't de-friend the dead: An analysis of grief communication by college students through Facebook profiles' (2013) 37 *Death Studies* 617, 625.

¹⁰⁶ M Duggan, 'Demographics of key social networking platforms' *Pew Internet* (9 January 2015) <<http://www.pewinternet.org/2015/01/09/demographics-of-key-social-networking-platforms-2/>> last accessed 1 August 2021.

¹⁰⁷ *Ibid.*

disclosure of electronic communications to third parties, except in limited circumstances'.¹⁰⁸ An example of how this works in practice can be found in the case involving Sahar Daftary. Notably, the judgment concluded with the obiter comment, 'Of course, nothing prevents Facebook from concluding on its own that Applicants have the standing to consent on Sahar's behalf and providing the requested materials voluntarily.'¹⁰⁹ Lamm is encouraged by this statement, stating, 'this sentence is ultimately beneficial because it strongly suggests (to me [James Lamm]) that this court would not oppose the executor of a deceased user's estate providing "lawful consent" under § 2702 of the Stored Communications Act'.¹¹⁰ Lamm also reminds us of the location of the court, being in the Northern District of California, the chosen jurisdiction under Facebook's terms.¹¹¹ McCallig, on the other hand, warns that this obiter statement should be treated with caution, as first, 'it fails to acknowledge Facebook's fear of wrongly concluding that an administrator or executor has the power to consent in such circumstances'. Second, 'It also ignores the reality that even if such consent is lawful, Facebook is under no obligation to release those communications'¹¹² since the Act grants to the provider a discretionary power of whether to disclose the contents of the communications. In s 2702, regarding the effect of a user's consent to the disclosure of communications, the Act uses the phrase 'may divulge the contents of communication',¹¹³ which does not mean that the provider is required to act and provide the communications. This interpretation was followed in the Daftary case, as well.¹¹⁴ In addition, the contents of communication cannot be disclosed to anyone but the government, and therefore the only solution is a user's consent.¹¹⁵ There is no similar case in the UK to interpret the similar provisions of Part 1, Chapter 1 of the Regulation of Investigatory Powers Act 2000.

Facebook's help page states that it may be possible for content from a deceased's account to be requested by an authorised representative of the

¹⁰⁸ Stored Communications Act 18 USC ss 2701–12.

¹⁰⁹ *In re Request for Order Requiring Facebook, Inc to Produce Documents and Things* (n 25) 2.

¹¹⁰ J Lamm, 'Facebook blocks demand for contents of deceased user's account' *Digital Passing Blog* (11 October 2012) <<http://www.digitalpassing.com/2012/10/11/facebook-blocks-demand-contentsdeceased-users-account/>> last accessed 1 August 2021.

¹¹¹ *Ibid.*

¹¹² McCallig (n 83) 17.

¹¹³ See 18 USC § 2702(b).

¹¹⁴ *In re Request for Order Requiring Facebook, Inc to Produce Documents and Things* (n 25) and *United States v Rodgers*, 461 US 677, 706 (1983) ('The word "may," when used in a statute, usually implies some degree of discretion.').

¹¹⁵ US Stored Communications Act § 2702(b).

deceased and with a court order in rare cases.¹¹⁶ The help page then links to a request form, asking several questions and requiring the submission of proof of identity. It is worth noting that this is much more definite than the old version of the request, which permitted a request based on an obituary.¹¹⁷ Further, even following this procedure and upon the provision of documents, Facebook does not guarantee the fulfilment of the request. This is a very similar situation to that of the deactivation and removal of an account.

Finally, Facebook seems to have followed Google's lead and Inactive Account Manager with its more recently announced option of Legacy Contact.¹¹⁸ From 12 February 2015, Facebook allowed its US users to designate a friend or family member to be their Facebook estate executor and manage their account after they have died. This was then rolled out to the rest of its users worldwide. The Legacy Contact has a limited number of options: writing a post to display at the top of the memorialised timeline; responding to new friend requests; and updating the profile picture and cover photo of the deceased user.¹¹⁹ In addition, a user 'may give their legacy contact permission to download an archive of the photos, posts and profile information they shared on Facebook'.¹²⁰ The Legacy Contact will not be able to log in to the account or see the deceased's private messages. All the other settings will remain the same as before memorialisation of the account. Finally, an option is that a user decides that their account is to be permanently deleted after their death.¹²¹ The rationale behind this feature, according to Facebook, is to support both grieving individuals (it is not clear whether family, friends or all of them) and users who want to take more control over what happens to their account on death.¹²²

This move from Facebook is, admittedly, a valuable development for its users. It does shift the balance of interests from family and next of kin to

¹¹⁶ Facebook, 'How do I request content from the account of a deceased person?' <<https://www.facebook.com/help/123355624495297>> last accessed 1 August 2021.

¹¹⁷ K Notopoulos, 'How almost anyone can take you off Facebook (and lock you out)' *BuzzFeed* (4 January 2014) <<http://www.buzzfeed.com/katienotopoulos/how-to-murder-your-friends-on-facebook-in-2-easy-s#.xbLyLygo2>> last accessed 1 August 2021; J Schofield, 'What happens to your Facebook account when you die?' *Guardian* (30 October 2014) <<http://www.theguardian.com/technology/askjack/2014/oct/30/what-happens-to-your-facebook-account-when-you-or-a-loved-one-dies>> last accessed 1 August 2021.

¹¹⁸ Facebook, 'Adding a legacy contact' *Facebook Newsroom* (12 February 2015) <<http://newsroom.fb.com/news/2015/02/adding-a-legacy-contact/>> last accessed 1 August 2021.

¹¹⁹ *Ibid.*

¹²⁰ *Ibid.*

¹²¹ *Ibid.*

¹²² *Ibid.*

users. Users now have control over who their Legacy Contact is, and this can only be one of their Facebook friends. Legacy Contact does not take too much control over the deceased's account, as they cannot post on behalf of the user (apart from the one message in remembrance and changing the timeline and profile picture), and they need permission to download an archive of the deceased user's content. Initially, it was unclear whether this permission includes all the content or some categories. Recent changes have provided that the Legacy Contact can receive photos and videos the deceased uploaded, wall posts, profile and contact information, events and friends list. They will not receive messages, ads the person clicked, pokes, security and settings information, or photos they automatically synced but did not post. This is due to this content's private or sensitive nature, and I support this from a PMP stance. However, understandably, Facebook notes that it 'may provide access to this type of information in response to a valid will or other legal consent document expressing clear consent'.¹²³

One of the issues is the obscure place of this option (as seen with other options about the deceased's account; see the discussion above). To designate a Facebook Legacy Contact, a user needs to go into 'Settings', choose 'Security', and then choose 'Legacy Contact' at the bottom of the page.¹²⁴ Moreover, under the existing policy, it is unclear whether this option will trump the options heirs and next of kin have (deactivation and memorialisation as set out above). I have argued that Facebook needs to make this clear in its terms of service.¹²⁵ This has been clarified to an extent, but still not reasonably as this information does not appear in the request form for removal. Also, there might be issues with conflicting interests of heirs or families with a friend designated as a Legacy Contact and having an option to download the archive of the deceased's content. For instance, if the heirs inherit copyright in the user's works, and the Legacy Contact has acquired this content with the user's permission, will this content be exempt from the provisions of the will or intestacy laws? With this option, Facebook notably shifts the balance and accounts more for the deceased's interests and decisions before death.

In the next round of revising its terms related to deceased users, in April 2019, Facebook introduced a 'Tributes' section. This came after a series of consultations with external stakeholders, including myself and other academics working in the area. The new provision aims to develop memorialisation further and provide the Legacy Contact with new powers. The Tributes side

¹²³ Facebook, 'What data can a legacy contact download from Facebook?' <<https://www.facebook.com/help/408044339354739/?helpref=related>> last accessed 1 August 2021.

¹²⁴ Ibid.

¹²⁵ Harbinja (n 40).

of the deceased's profile co-exists with their timeline, and the timeline is still visible as set by the deceased before their death, whereas the Tributes include posts created after death in the remembrance of the deceased. The Legacy Contact can alter the visibility of the Tributes and do the following: change who can post tributes; delete Tributes posts; change who can see posts in which the deceased is tagged; remove tags of the deceased that someone else has posted; and, if the deceased had turned on a timeline review, the Legacy Contact can turn it off for posts in the Tributes section.¹²⁶ Facebook also changed its policies to let parents who have lost underage children to request to become their Legacy Contact. This is most likely in response to the recent court and media cases, such as the Berlin court case or the case of Molly Russell's tragic death.¹²⁷ Finally, in this iteration of changes, Facebook has attempted to clarify the use of AI for the deceased's profiles that have not yet been memorialised. Facebook claims that it uses AI to 'keep it from showing up in places that might cause distress, like recommending that person be invited to events or sending a birthday reminder to their friends'.¹²⁸ Edwards and Harbinja have argued that the exact extent and specifics of the use of AI are still vague and it would be helpful if Facebook made this clearer in its terms of service and the help centre.¹²⁹

These kinds of tools give users a chance to explicitly shape their own future by indicating perhaps what data they do or do not want preserved or deleted, or to whom that data should go. Many issues remain to be addressed with such technological solutions, including the issue of conflicts both with traditional wills and with standard terms of service.¹³⁰ Also, anecdotal evidence shows that both the Google (discussed in Chapter 6) and Facebook tools remain relatively obscure. Facebook and Google could both make the existing options more prominent and a part of their core terms of service

¹²⁶ Facebook, 'What are tributes on a memorialised Facebook profile?' <<https://www.facebook.com/help/745202382483645>> last accessed 1 August 2021.

¹²⁷ BBC News, 'Molly Russell: "Why can't I see my daughter's data?"' (6 February 2019) <<https://www.bbc.com/news/av/technology-47143315/molly-russell-why-can-t-i-see-my-daughter-s-data>> last accessed 1 August 2021.

¹²⁸ Facebook, 'Making it easier to honor a loved one on Facebook after they pass away' *Facebook Newsroom* (9 April 2019) <<https://newsroom.fb.com/news/2019/04/updates-to-memorialization/>> last accessed 1 August 2021.

¹²⁹ L Edwards and E Harbinja, "Be right back": What rights do we have over post-mortem avatars of ourselves? in L Edwards, B Schafer and E Harbinja (eds), *Future Law: Emerging Technology, Regulation and Ethics* (Edinburgh University Press 2020).

¹³⁰ This issue was a hot topic in the revision of the US model law UFADAA, which grants priority to service providers' terms of service and user choices over any other provisions, including a traditional will.

rather than part of their 'help' pages. Finally, the designated Legacy Contact might simply refuse to play their part or not be able to be located, which then defeats the initial good intention of the social network.¹³¹

Twitter

Similarly, Twitter's user agreement is spread over several pages, including 'Terms of Service',¹³² 'Privacy Policy'¹³³ and 'Rules and Policies'.¹³⁴ These terms are not very visible, as they are linked to the user's profile help page. Also, Twitter's policy differs in that it includes a period of inactivity (six months) after which the account can be permanently removed.¹³⁵ Another difference is that Twitter has a single option policy concerning the deceased's account, set out in the 'General' section of the 'Rules and Policies'.¹³⁶ According to this section, essentially a help page rather than a firm contractual term, 'a person authorized to act on the behalf of the estate or with a verified immediate family member of the deceased' can request deactivation of the account.

In the earlier version of the form, interested parties were required to provide an extensive list of information and documents for their request to be considered. The documentation had to be sent by post to Twitter's address in San Francisco. Further communication could be conducted via email. This has been simplified recently, and in the first instance, much less information is required to request deactivation. After the online form has been submitted, Twitter promises to get in touch by email with further instructions and a request to provide information about the deceased, a copy of the requester's ID, and a copy of the deceased's death certificate. Twitter is explicit about access to the account, like Facebook, stating, 'We are unable to provide account access to anyone regardless of his or her relationship to the deceased.'¹³⁷

Twitter terms thus offer fewer options than Facebook. Understandably, due to the features and nature of Twitter, it is unimaginable that similar options to Facebook's could be available. Followers on Twitter are not exactly

¹³¹ Edwards and Harbinja, "Be right back" (n 129).

¹³² Twitter, 'Terms of service' (n 73).

¹³³ Twitter, 'Privacy policy' <<https://twitter.com/privacy>> last accessed 1 August 2021.

¹³⁴ Twitter, 'Rules and policies' <<https://help.twitter.com/en/rules-and-policies>> last accessed 1 August 2021.

¹³⁵ Twitter, 'Inactive account policy' <<https://help.twitter.com/en/rules-and-policies/inactive-twitter-accounts>> last accessed 1 August 2021.

¹³⁶ Twitter, 'How to contact Twitter about a deceased family member's account' <<https://help.twitter.com/en/rules-and-policies/contact-twitter-about-a-deceased-family-members-account#:~:text=In%20the%20event%20of%20the,of%20a%20deceased%20user's%20account>> last accessed 1 August 2021.

¹³⁷ Ibid.

one's friends, and many are, in fact, complete strangers. The nature of the community on Twitter is very different, too (users sharing different interests and participating in discussions, not necessarily wanting to keep in touch and share personal information to the extent Facebook's users do). The option of getting the user's content, provided by Facebook in unclear circumstances, is not available on Twitter at all.

On the other hand, most tweets are public¹³⁸ and anyone can access them, therefore it is not necessary to gain access to a user's account. Only users themselves can download an offline archive of their tweets. Their family or friends could access the public tweets themselves, bearing in mind the period of inactivity after which the account will be inaccessible (currently six months). Issues similar to Facebook arise in the case of private tweets and protected accounts, and for these, some form of user choice is needed, as in Facebook.

Recently, Twitter attempted to make a move and remove the accounts of its inactive users, including the deceased, to 'free up' usernames and make the information on the network more up to date and credible.¹³⁹ This was met with a massive outcry amongst users and commentators, so Twitter decided to halt the plan and introduce a memorialisation policy instead.¹⁴⁰ At the time of writing, unfortunately, we have not heard any details as to what that policy may look like.

In conclusion, Twitter appears to have had a sensible approach to deceased users' accounts, given the nature and use of this network. The public nature of tweets is a mitigating factor compared with Facebook, as families can access tweets if they wish. In addition, they can request deactivation and, in exceptional circumstances, protection of the deceased's privacy. The factor that complicates possible communication between families of the deceased and Twitter is Twitter's requirement that the correspondence should be conducted by post.

¹³⁸ B Bosker and D Grandoni, '9 quirkiest facts about Twitter: Gaze into the soul of the Twittersphere' *Huffington Post* (10 November 2012) <http://www.huffingtonpost.com/2012/10/10/quirkiest-facts-twitter-users_n_1956260.html> last accessed 1 August 2021.

¹³⁹ C Welch, 'Twitter will remove inactive accounts and free up usernames in December' *The Verge* (26 November 2019) <<https://www.theverge.com/2019/11/26/20984328/twitter-removing-inactive-accounts-usernames-available-date>> last accessed 1 August 2021.

¹⁴⁰ C Welch, 'Twitter halts plan to remove inactive accounts until it can memorialize dead users' *The Verge* (27 November 2019) <<https://www.theverge.com/2019/11/27/20986084/twitter-inactive-accounts-usernames-memorialize-deceased-users-not-removing>> last accessed 1 August 2021.

4.5 Post-Mortem Privacy

As demonstrated in Chapter 3, a critical issue that arises when considering the transmission of SNS content (and email considered in Chapter 6) is post-mortem privacy, understood in terms of the liberal conception of autonomy and the conceptions of privacy as autonomy, informational body and immortality.

SN service providers refer to PMP repeatedly (without using the term itself), refusing to transfer a deceased person's account or allow for access, memorialisation or content, in court cases, the company's news items and conversations with the company.

It is important to note at the outset that Facebook must comply with the European Union (EU) data protection legislation. As its subsidiary Facebook Ireland Limited is the provider of services and data controller in the EU, the Irish data protection laws apply.¹⁴¹ Moreover, in a German case, Facebook successfully claimed that Irish data protection law should apply to all its EU users as its headquarters are based in Ireland.¹⁴² Recollecting the discussion in the previous chapter (where it was demonstrated that most EU member states recognise PMP to an extent in their data protection regimes, excluding Ireland; the UK and US do not protect it either),¹⁴³ this means that the legislation generally requires that only personal data of living individuals is to be protected by Facebook.¹⁴⁴ Despite this, in the process of memorialising an account, Facebook promises to remove 'sensitive information such as contact information and status updates' in order to protect the deceased's privacy.

Another instance where Facebook allegedly protects post-mortem privacy is requesting a Look Back video or provision of the deceased's account contents. In this case, Facebook can only provide a unique link to the deceased's confirmed friends who request the link without an option to share it.¹⁴⁵ Finally, its Legacy Contact option protects a user's choice and privacy by providing for an individual's control over their account. This is demonstrated in the prohibition of the Legacy Contact to log in to the deceased's account

¹⁴¹ Data Protection Act, Number 7 of 2018.

¹⁴² *Facebook Ireland Limited gegen ULD*, Az. 4 MB10/13, 8 B 60/12 (Beschwerdebegründung ULD) and *Facebook Inc gegen ULD*, Az. 4 MB 11/13, 8 B 61/12 (Beschwerdebegründung ULD).

¹⁴³ See also L Edwards and E Harbinja, 'Protecting post-mortem privacy: Reconsidering the privacy interests of the deceased in a digital world' (2013) 32(1) *Cardozo Arts & Entertainment Law Journal* 111.

¹⁴⁴ Data Protection Act, Number 7 of 2018.

¹⁴⁵ Facebook, 'Deactivating, deleting & memorializing accounts' <<https://www.facebook.com/help/359046244166395/>> last accessed 1 August 2021.

and in that this person cannot see the deceased's private messages.¹⁴⁶ It is further exemplified in the recent addition of Tributes, a separate page in remembrance of the deceased where posts can be shared, distinct from the timeline that remains 'as is'. All these features are helpful and supportive of PMP.

However, this *prima facie* post-mortem friendly policy is complicated because Facebook, in principle, does not allow a nuanced and granular choice, and there are limited options regarding the Legacy Contact feature. Further, memorialisation of an account is not something that a user can opt in or out of, but is the default if a user has not chosen Legacy Contact. The nexus of data protection regimes in the EU, and perhaps less in the US, is the user's informed decision and control over their data. This regime, in most cases, does not apply to the deceased, as their personal data and privacy are generally not protected. However, if SN providers wish to establish this protection contractually, as they claim in their provisions, they need to provide users with meaningful information and coherent options to control this while alive.

In the early days of Facebook, the issue of PMP was examined in a comprehensive review by the Office of the Canadian Privacy Commissioner in 2009.¹⁴⁷ Before the review, the Canadian Internet Policy and Public Interest Clinic (CIPPIC) complained about the accounts of deceased Facebook users. The Canadian Commissioner pointed out three specific issues: an opportunity to opt out of memorialisation of their profiles should be given to users; clear information should be contained in terms of service and privacy policy relating to the process of memorialisation; and a procedure should be provided for relatives of a deceased user to request the removal of a user's profile.¹⁴⁸ The Commissioner opined that most 'typical' Facebook users welcome memorialisation and the prospect of being posthumously remembered and honoured by their friends and that this is 'an important part of the Facebook experience'.¹⁴⁹ The Commissioner was satisfied that memorialisation meets users' reasonable expectations and that an opt-out mechanism was not required.¹⁵⁰ Initially, however, in her preliminary report, the Commissioner had recommended that Facebook 'provide, and notify users of, a means whereby they

¹⁴⁶ Facebook, 'Adding a legacy contact' (n 118).

¹⁴⁷ Office of the Canadian Privacy Commissioner, *Report of Findings into the Complaint Filed by the Canadian Internet Policy and Public Interest Clinic (CIPPIC) against Facebook Inc., under the Personal Information Protection and Electronic Documents Act* (16 July 2009) <https://www.priv.gc.ca/cf-dcl/2009/2009_008_0716_e.asp> last accessed 1 August 2021.

¹⁴⁸ Ibid. 65.

¹⁴⁹ Ibid. 68.

¹⁵⁰ Ibid. 69.

may opt-out of Facebook's intended use of their personal information for the purpose of memorialising accounts'.¹⁵¹ Facebook, however, rejected this recommendation.¹⁵² The Commissioner was satisfied that due to the conclusion on users' reasonable expectations regarding the process of memorialisation, Facebook could rely on what she termed users' 'continuing implied consent to the practice'.¹⁵³ A similar conclusion would be (hypothetically in the lack of relevant case law and reports) drawn for the US, as privacy legislation there excludes protection of privacy of the deceased.¹⁵⁴ With the introduction of the Legacy Contact feature, the Commissioner's requirements have been implemented to an extent, and Facebook reconsidered its argument stated above.

In relation to deleting personal data from Facebook, it is again contradictory that, while expressly mentioning PMP at various points, Facebook currently offers this option to living users and to deceased users in the US. In addition, Facebook warns that deleting information may need to be balanced with the rights of other users who 'may wish to retain on their account information posted by others'.¹⁵⁵ Moreover, even in living users' requests for deletion, some of the content still remains on Facebook, such as posts in groups and private messages to their friends.¹⁵⁶ This balance can also be disturbed, for instance, when parents or next of kin request deletion of an account but friends would like to retain it and have it memorialised. Therefore, the argument seems to be contradictory and does not entirely promote PMP and users' autonomy.

The crux of the issue is how to balance the right of the 'owner' of information (the person who originally posted it) to control it with the rights of others who believe that this shared information is owned (jointly) by them. This is also where Facebook's terms, forms and help pages contradict each other. Thus, whereas information may be removed from a timeline by another, when Facebook defines a user's information, this includes items others have posted to the user's timeline.¹⁵⁷ This issue surfaced on the death of a

¹⁵¹ Ibid.

¹⁵² Ibid.

¹⁵³ Ibid. 68.

¹⁵⁴ Edwards and Harbinja, 'Protecting post-mortem privacy' (n 143).

¹⁵⁵ E Mann, 'Comments from Facebook on the European Commission's proposal for a Regulation' *GitHub* (25 April 2012) <<https://github.com/lobbyplag/lobbyplag-data/raw/master/raw/lobby-documents/Facebook.pdf>> last accessed 1 August 2021, 5.

¹⁵⁶ Facebook, 'Deactivating or deleting your account' <<https://www.facebook.com/help/359046244166395/%20>> last accessed 1 August 2021.

¹⁵⁷ Facebook, 'What categories of my Facebook data are available to me?' <<https://www.facebook.com/help/405183566203254/>> last accessed 1 August 2021.

user and, according to Facebook's stance mentioned above, default memorialisation, without an opt-out option (except for the Legacy Contact), solves the problem of maintaining the information on the network.

Finally, concerning the third issue in the complaint to the Canadian Commissioner (a procedure for relatives to seek the removal of a deceased user's profile), Facebook confirmed that such a procedure was already in place. Facebook stated that it 'honor[s] requests from close family members to close the account completely' and that its 'policy leaves the choice of whether or not a profile is "memorialized" or retained indefinitely, to the next of kin'.¹⁵⁸ Consequently, while Facebook denied the user the option of deciding whether or not information should be deleted following death (except for the Legacy Contact), a family member or next of kin were considered suitable to make such a decision.¹⁵⁹ This policy has evolved since. Facebook notes that requests will not be processed if it cannot verify the requester's relationship to the deceased.¹⁶⁰ In terms of its effects, the removal request if granted 'will completely remove the timeline and all associated content'.¹⁶¹ However, the process is discretionary, and it is unclear what criteria are used to decide whether removal is appropriate.¹⁶² It is also unclear what happens to the competing requests for memorialisation and deletion when family members require different options or when a user wishes to have their content deleted in the Legacy Contact option.

Facebook, therefore, may have a genuine intention to protect PMP, but in reality, this is met with many issues and inconsistencies indicated above. The options provided in relation to the deceased's account seem to point to the opposite conclusion: Facebook protects the interests and wishes of the deceased user's *family* while providing only a limited option for a user to decide what happens to their account upon death. In addition to curtailing PMP, this power over a deceased user's profile is not under the general rule that no third-party rights are created or conferred. As demonstrated above, this option needs to be reconsidered carefully and developed in order for Facebook to create a coherent post-mortem policy. First and importantly, Facebook needs to decide whose interests should prevail, those of the deceased, their family and next of kin, or their Facebook friends. This decision is a basic presumption for implementing a coherent and sustainable policy. However,

¹⁵⁸ Office of the Canadian Privacy Commissioner (n 147) 66.

¹⁵⁹ Ibid.

¹⁶⁰ Facebook, 'How do I ask a question about a deceased person's account on Facebook?' (n 102).

¹⁶¹ Ibid.

¹⁶² Mazzone (n 37) 1661–2.

this primarily technological solution should be recognised in law, as is argued further in the following section.

Consequently, Facebook would be able to rightly assert that it fosters the user's autonomy and privacy coherently post-mortem. This coherent policy would then be implemented technologically through the Legacy Contact, for instance. By enabling users to control their profiles post-mortem and preventing others from circumventing the wishes of the deceased expressed technologically, Facebook would be respecting the autonomy that underpins Internet privacy rights (according to Bernal) and recognising the PMP rights of its users.

Twitter does not address personal data and privacy of deceased users in its privacy policy;¹⁶³ neither is the issue mentioned in its guidelines on contacting Twitter about a deceased user. Instead, the guidelines note, 'We are unable to provide account access to anyone regardless of his or her relationship to the deceased', invoking privacy of the deceased.¹⁶⁴ For Twitter, however, the issue is less prominent as the majority of content published there is public anyway, and users consent to this when accepting the terms of service.¹⁶⁵ Although public tweets are the default setting, users can make their tweets private and allow only approved followers to see them.¹⁶⁶ This is done by a small percentage of Twitter users,¹⁶⁷ as protecting tweets almost defeats the purpose of Twitter. Therefore, the PMP question would relate only to this small number of Twitter users, and the findings regarding Facebook would apply to these accounts, too.

PMP serves as an argument against the default transmission of SN account contents on death without the deceased's consent, that is, through intestacy laws or by requiring intermediaries to provide access to the deceased's emails.¹⁶⁸ This further justifies the court's decisions in the cases of Ellsworth

¹⁶³ Twitter, 'Privacy policy' (n 133).

¹⁶⁴ Twitter, 'Contacting Twitter about a deceased user or media concerning a deceased family member' <<https://help.twitter.com/en/rules-and-policies/contact-twitter-about-a-deceased-family-members-account#:~:text=In%20the%20event%20of%20the,of%20a%20deceased%20user's%20account>> last accessed 1 August 2021.

¹⁶⁵ Twitter, 'Privacy policy', version 12 <https://twitter.com/en/privacy/previous/version_12> last accessed 1 August 2021.

¹⁶⁶ Twitter, 'About public and protected Tweets' <<https://help.twitter.com/en/safety-and-security/public-and-protected-tweets>> last accessed 1 August 2021.

¹⁶⁷ 11.84 per cent of Twitter users had protected accounts on average. See Beevolve, 'An exhaustive study of Twitter users across the world' <<http://www.beevolve.com/twitter-statistics/#c1>>. There is not more recent data, but anecdotal evidence suggests the figures have been steady.

¹⁶⁸ Harbinja (n 40).

and Daftary (more impliedly, though) and the service providers' ToS, which implicitly recognise PMP. Recognition of PMP, and consequently autonomy, questions the default position of using transmission by way of the laws of succession for some kinds of digital assets (those containing a vast amount of personal data, such as emails and social networks). Rather than using the current offline defaults, it is argued here and in my earlier work¹⁶⁹ that more nuanced solutions for the transmission of SN account contents are needed. These solutions will be explored in the following sections and would aim to account for the privacy interest of the deceased and their autonomy. These interests are mostly not recognised, as the law favours the heirs, and the technology solution initially favoured the surviving families' interests. As information generally cannot be viewed as a property object (for more detail, see Chapter 6), and it represents a significant portion of the content online, laws that had a purpose of regulating the disposition of the traditional types of property (including copyright, but with some exceptions) should not apply by default. Autonomy and the privacy interests of the deceased based on autonomy should be considered much more when suggesting solutions for the transmission of digital assets in general.

4.6 Solutions for the Transmission of Social Network Content on Death

The final section will offer some tentative solutions concerning the transmission of SNS content on death. More general solutions will be offered in the final chapter.

Social network content has been a subject of the most extensive interest amongst scholars in the area of transmission of digital assets. The commentators attempt to address some of the issues analysed in this chapter, proposing legal, technological and market solutions.

McCallig underpins his proposal by a premise of 'the promotion of active testamentary choice', arguing that the default access rule should be overridden by the user's choice of 'a service opt-ins to a digital remains disposition scheme'.¹⁷⁰ He argues that the in-service feature recognising user choice or approved digital estate planning services should be utilised and recognised by statute, akin to the US example elaborated in the previous chapter (RUFADAA). He also proposes that users should be prompted to review their choices regularly and that this option should not be only a waiver added to terms of service. He submits that the options for users to opt in to other research and heritage schemes should be available for a limited time after

¹⁶⁹ Ibid.

¹⁷⁰ Ibid. 34.

death. He goes even further, introducing a granular approach where users would be able to choose the type of institution or research.¹⁷¹ McCallig suggests that Facebook should implement policy changes on its network in order to benefit users, families and heirs, by granting them certainty but also by promoting preservation and heritage institution access.¹⁷²

Along similar lines, Sherry proposes a checkbox solution, whereby the SN would prompt users to decide what happens to their SN assets on death. She, however, expresses concerns and pessimism about whether SN sites would implement these options voluntarily, calling for US state and federal statutory interventions.¹⁷³ In addition, she identifies some other options and further develops the existing ones, currently not included in terms of service or US legislation and legislative proposals, namely:

- (1) outright termination of a decedent's account by the social media service;
- (2) termination of the account by an executor; (3) allowing an executor to obtain the *contents* of an account; (4) allowing the executor *access for limited purposes*; (5) granting the executor uninhibited access to the account; and more.¹⁷⁴

Beyer and Cahn¹⁷⁵ and Lamm et al. also argue that Congressional amendments to the Computer Fraud and Abuse Act and the Electronic Communications Privacy Act (in order to avoid criminal liability of service providers and fiduciaries) and uniform state law is the best holistic approach to solving all these issues.¹⁷⁶

Mazzone proposes a solution in the form of 'a Facebook executor', a person that would be designated by a user and allowed by Facebook to take over the account or to decide what happens to the account after the user's death (e.g. close down the account or request closure from Facebook, curate materials, or leave all of the content).¹⁷⁷ In addition to these functions, the executor would be responsible for monitoring postings on the deceased's timeline and

¹⁷¹ Ibid.

¹⁷² Ibid.

¹⁷³ K Sherry, 'What happens to our Facebook accounts when we die?: Probate versus policy and the fate of social-media assets postmortem' (2013) 40(1) *Pepperdine Law Review* 185, 250 (original emphasis).

¹⁷⁴ Ibid. 235.

¹⁷⁵ GW Beyer and N Cahn, 'Digital planning: The future of elder law' (2013) 9 *NAELA Journal* 135, 137.

¹⁷⁶ JD Lamm et al., 'The digital death conundrum: how federal and state laws prevent fiduciaries from managing digital property' (2014) 68 *University of Miami Law Review* 385, 414–19; Electronic Communications Privacy Act, 18 USC §§ 2510 *et seq.*

¹⁷⁷ Mazzone (n 37) 1655.

maintain the account in general (this would probably mean memorialisation).¹⁷⁸ Mazzone, however, is sceptical as to Facebook's will to implement these changes on its own initiative. He maintains that Facebook is responsive to consumer pressure (of which we have offered many illustrations in this chapter). However, due to the lock-in effects (Facebook's popularity resulting in users' not wanting to move to a different service with more favourable terms) and users' aversion towards thinking and being reminded about their mortality, 'dissatisfaction with Facebook's current policy likely does not translate into a sufficient level of consumer pressure to force change'.¹⁷⁹ Mazzone, therefore, advocates a federal statute, which would impose these requirements and mandate some degree of control to users over their profiles post-mortem.¹⁸⁰ Mazzone warns, however, that protecting the interests of other users would depend on the user and their representative. Whereas some users will request memorialisation of a sort, those who would prefer deletion could be prevented by a statute from deleting all the content to enable protection of the competing interests of other users and their access to the content. One example that Mazzone uses to illustrate this suggestion is that the law could preserve access to content posted more than one year before the user's death so that only access to recent postings is limited.

Further, he proposes that the law could prohibit a representative from deleting or disabling access to content that has been shared with more than a specified number of other users. Finally, the law could limit the power of the representative to remove or prevent access to content that they consider harmful to the reputation of the deceased or that is sensitive.¹⁸¹ While the proposal is a good step forward, it is difficult to see how a representative could implement these different options in practice. It seems rather impractical, bearing in mind the volume and nature of content shared on Facebook between millions of users.

In my earlier work, I have proposed law- and code-based solutions, arguing that a solution akin to Legacy Contact is acceptable, provided that greater consistency in terms of service has been achieved in the future. In addition, the solution must be supported by law reforms to address conflicts between traditional laws of succession and novel, code-based solutions.¹⁸² I have repeatedly tried to access more concrete data about the uptake of Legacy Contact, but Facebook has not provided exact data at the time of writing. Anecdotally, the

¹⁷⁸ Ibid. 1579.

¹⁷⁹ Ibid. 1681.

¹⁸⁰ Ibid. 1685.

¹⁸¹ Ibid. 1684.

¹⁸² Harbinja (n 40).

uptake has been very low; probably not more than 10 per cent of users have considered the post-mortem options.

Facebook has, admittedly, implemented some of the scholarly suggestions set out above with the introduction of Legacy Contact and Tributes. The granularity of options has increased significantly in the past years, but inconsistencies are still to be resolved. Importantly, it seems like Facebook has been amongst the very few technology companies that have taken the issues surrounding their deceased users' account somewhat seriously. It has introduced changes based on input from stakeholders and scholars, and some of them mirror the ones explored in this book. We will return to solutions in the last chapter.